

HOUSE No. 1486

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve establishing a special commission to study and make recommendations relative to Chapter 40B.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Day</i>	<i>31st Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1486

By Representative Day of Stoneham, a petition (accompanied by resolve, House, No. 1486) of Michael S. Day for an investigation by a special commission (including members of the General Court) to study and make recommendations relative to the comprehensive permit law. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1310 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve establishing a special commission to study and make recommendations relative to Chapter 40B.

1 **Resolved**, there shall be a 9 member special commission for the purpose of investigating
2 the use and effectiveness of the “comprehensive permit law,” sections 20 to 23, inclusive of
3 chapter 40B of the General Laws. The commission shall consist of the secretary of
4 administration and finance or his designee; the secretary of housing and economic development
5 or his designee; the secretary of transportation or his designee; the senate chair of the joint
6 committee on municipalities and regional government, the senate chair of the joint committee on
7 housing; 1 member appointed by the senate minority leader; the house chair of the joint
8 committee on municipalities and regional government, the house chair of the joint committee
9 housing; and 1 member appointed by the house minority leader.

10 The commission shall study the effectiveness of the “comprehensive permit law” as a
11 mechanism for promoting the construction of affordable housing units in the Commonwealth and

12 its impact on regional and municipal planning. The commission shall hold at least 14 public
13 hearings, one in each county in the Commonwealth, to solicit public testimony and evidence of
14 the positive and negative aspects of the “comprehensive permit law.” The commission shall
15 issue a report that shall include the history of the comprehensive permit law; other statutory
16 mechanisms designed to promote the increase of affordable housing units in our municipalities; a
17 summary of the testimony presented at the public hearings; and any legislative or regulatory
18 amendments it deems necessary to ensure the “comprehensive permit law” effectively promotes
19 the best interests of the Commonwealth, its municipalities and the goal of increasing the amount
20 of affordable housing units in both.

21 The commission shall file its report with the clerk of the senate and the clerk of house of
22 representatives on or before December 31, 2026.